



Fixed Price Statement of Work

Customer Name: Colex Finishing Solutions ("Customer" or "You")

Customer Address: 55-57 Bushes Lane, Elmwood Park, NJ 07407

SOW Number: US-142713

1. Agreement

This Statement of Work ("SOW") describes the professional services (the "Professional Services") to be performed by Oracle America, Inc. ("Oracle") for Customer (collectively "Parties") pursuant to the applicable agreement governing Oracle's performance of Professional Services (the "PS Terms") listed below (in order of preference, as applicable):

- (i) the Professional Services Addendum to the Subscription Services Agreement entered by and between the Parties,
- (ii) the separate Professional Services Agreement entered by and between the Parties; or
- (iii) if neither (i) nor (ii) are applicable, the Professional Services Agreement found at <https://www.oracle.com/corporate/contracts/cloud-services/netsuite/> (or such other URL as specified by Oracle).

Once executed by the Parties, this SOW shall be incorporated by reference into the PS Terms. In the event of any inconsistency or conflict between the terms and conditions of this SOW and the PS Terms, the terms and conditions of this SOW shall govern with respect to the subject matter of this SOW only. Capitalized terms used in this SOW shall have the meaning defined under the PS Terms. This SOW may not be modified or amended except in a writing signed by a duly authorized representative of each party. As used in this SOW, "You" or "Your" shall refer to the Customer as defined in the Agreement.

2. Description of Services

Oracle will perform the following Professional Services related to Your single Oracle|NetSuite instance (the "NetSuite instance"):

- A. Create an extension for a new area in MyAccount to search and display knowledge base articles.

3. Your Obligations and Project Assumptions

You acknowledge that Your timely provision of and access to office accommodations, facilities, equipment (if applicable), and assistance, cooperation, complete and accurate information and data from Your officers, agents, and employees (collectively, "cooperation") are essential to the performance of any Professional Services as set forth in this SOW. Oracle will not be responsible for any deficiency in performing Professional Services if such deficiency results from Your failure to provide full cooperation. You acknowledge that if Oracle's cost of providing Professional Services is increased because of Your failure to meet the obligations listed in this SOW, failure to provide cooperation, or because of any other circumstance outside of Oracle's control, then You agree

to pay Oracle for such increased costs. Such increased costs may include time during which Oracle resources are under-utilized because of delays.

You acknowledge that Oracle's ability to perform the Professional Services depends upon Your fulfillment of the following obligations and the following project assumptions:

3.1. Your Obligations

- 1) Obtain a subscription to the service under separate contract prior to the commencement of Professional Services under this SOW and maintain such subscription for the duration of the Professional Services provided under this SOW.
- 2) Provide Oracle with full access to the relevant documentation and the relevant functional, technical and business resources with adequate skills and knowledge to support the performance of Professional Services.
- 3) Provide, for all Oracle resources performing Professional Services at Your site, a safe and healthful workspace (e.g., a workspace that is free from recognized hazards that are causing, or likely to cause, death or serious physical harm, a workspace that has proper ventilation, legally acceptable oxygen concentration levels, sound levels acceptable for resources performing Professional Services in the workspace, and ergonomically correct work stations, etc.).
- 4) Provide any notices, and obtain any consents, required for Oracle to perform Professional Services.
- 5) Limit Oracle's access to any production environments or shared development environments to the extent necessary for Oracle to perform Professional Services.
- 6) When services will be performed on-site at customer location in the US, as required by U.S. Department of Labor regulations (20 CFR 655.734), You will allow Oracle to post a Notice regarding Oracle H-1B employee(s) at the work site prior to the employee's arrival on-site.
- 7) Be responsible for ensuring that common, consistent functional processes exist across Your organization; including any applicable parent and subsidiary companies (e.g., there will be one common Order to Cash process across the entire organization).
- 8) Be responsible for performing a production refresh of the sandbox at the start of the project.
- 9) Do not film or record Oracle's delivery of Professional Services, Oracle resources, or any Oracle materials.
- 10) Provide written notice of Your need to temporarily pause the performance of the Professional Services under this SOW, in order to complete Your assigned tasks and/or obligations, at least five (5) business days prior to any such pause. Your written notice must be received by Oracle five (5) business days prior to the pause, and the pause will be limited to a maximum of ten (10) business days.
- 11) If while performing Professional Services Oracle requires access to other vendor's products that are part of Your system, You will be responsible for acquiring all such products and the appropriate license rights necessary for Oracle to access such products on Your behalf.
- 12) Be responsible for procuring any third-party services and applicable fees.

3.2. Project Assumptions

- 1) All Professional Services will be performed remotely.
- 2) All communications are in English.
- 3) Oracle resources are not dedicated to any single project and are engaged across many projects for various customers.
- 4) Any Professional Services not expressly included in the above Description of Services are considered out of scope.
- 5) You do not require Oracle to work outside their standard local country workday hours.

- 6) Any and all hours outside normal business hours and/or in excess of ten (10) hours per day per Oracle resource or fifty (50) hours per week per Oracle consulting resource require the prior written consent of Oracle.
- 7) Project timeline estimates are based on availability of Your resources and key decision makers. Lack of access or change to project stakeholders will impact project timelines and costs if decisions cannot be made in a timely fashion.

4. Pricing & Payment Terms

Fixed Fees: The pricing set forth in this SOW represents the fixed fees for the Professional Services set forth in this SOW. Additional discounts (if any) for these Professional Services will be reflected in Your Estimate/Order Form that references this SOW and/or these Professional Services. In the event of a conflict between the pricing set forth in this SOW and the pricing set forth in Your Estimate/Order Form governing this SOW and/or these Professional Services, then the pricing set forth in Your Estimate/Order Form shall govern and control.

You agree to pay Oracle the fees as specified in the Estimate/Order Form for the Professional Services described in this SOW. This fee is invoiced in advance of Professional Services being performed and does not include expenses, if applicable, or taxes. The fee for Professional Services and any applicable taxes shall be invoiced in full upon Your execution of and Oracle's acceptance of the Estimate/Order Form, upon which the fee becomes due and payable, as per the payment terms in the estimate or Services Order; this payment obligation is noncancelable and the sums paid non-refundable, except as otherwise may be provided in the PS Terms. Other expenses related to the providing of the Professional Services are specified in Your Estimate/Order Form. Such expenses will be invoiced monthly as they are incurred.

Any expenses (as described below) are not included in the fixed fees and are an additional cost to You. The payment obligation is non-cancellable and sum paid non-refundable except as otherwise expressly provided in Your Estimate/Order Form.

You acknowledge that the fixed price is based solely on the information provided to Oracle and the assumptions documented in this SOW. Any requirement(s) not included herein or items not contemplated will be considered outside of the fixed price scope and will be handled through the Change Control Process defined below and may result in additional cost. The total fees for this SOW are as follows:

Professional Services Fees	
Professional Services	\$9,500.00 USD
Total Professional Services Fees (excluding expenses described below)	\$9,500.00 USD

- a) **Payment Terms.** Unless otherwise noted in Your Estimate/Order Form, fees are due Net 30 days from invoice date.
- b) **Expenses:** Reasonable travel and living expenses required in connection with delivering the Professional Services will be incurred in accordance with Oracle's internal travel and expense policy and billed monthly as incurred to You as actual charges in addition to the Professional Services fees.

5. Project Management

You and Oracle each agree to designate a project manager who shall be responsible for coordinating its activities under this SOW. You and Oracle each shall direct all inquiries concerning the Professional Services to the other party's project manager. Your project manager shall have the authority to approve Professional Services on Your behalf. Oracle's project manager shall have the sole right to exercise direct control and supervision over the work assignments of Oracle resources.

6. Additional Terms

6.1 Unused Services.

The Professional Services herein must be completed within **six (6) months** from the signature date of the Estimate/Order Form ("Professional Services Period"). Any portion of the Professional Services not used within the Professional Services Period will be automatically forfeited by You, with no further action required of either party, and You will not be entitled to a refund, or any credit toward additional or other Professional Services, for any unused portion of the fees paid for any unused portion of the Professional Services. You may not apply any portion of unused Professional Services or fees paid, for any Professional Services other than the Professional Services stated in this SOW. In order for Oracle to provide Professional Services to You after the Professional Services Period, You and Oracle shall mutually agree, in writing, under a separate Estimate/Order Form and SOW, to the terms and fees for such Professional Services.

6.2 Change Control Process.

Any request for any change in Professional Services must be in writing; this includes requests for changes in project plans, scope, specifications, schedule, designs, requirements, service deliverables, software environment, hardware environment or any other aspect of Your order. Oracle shall not be obligated to perform tasks related to changes in time, scope, cost, or contractual obligations until You and Oracle agree in writing to the proposed change to this SOW.

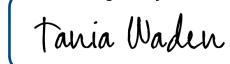
7. Signatures

The Parties acknowledge that they have had previous discussions related to the performance by Oracle of professional services for You and the possible strategies which may be used by Oracle to implement the functionality described in Oracle's User Guides and in other related documentation (available at <https://www.oracle.com/corporate/contracts/cloud-services/netsuite/>) as well as possible "workarounds," which may be implemented to achieve special requirements identified by You. This SOW and the Estimate/Order Form (including any Exhibits hereto) (and the PS Terms) shall constitute the entire understanding between You and Oracle and is intended as the final expression of the Parties' agreement regarding the Professional Services to be provided by Oracle. The Parties expressly disclaim any reliance on any and all prior agreements, understandings, RFPs, verbal and/or written communications related to the Professional Services to be provided by Oracle. Any amendment or modification to this SOW shall not be valid, enforceable, or binding on the Parties unless such amendment or modification (i) is a written instrument duly executed by the authorized representatives of both Parties and (ii) references this SOW and identifies the specific Sections contained herein which are to be amended or modified. This SOW may be executed in counterparts and/or by facsimile or electronic signature and if so executed shall be equally binding as an original copy of this SOW executed in ink by both Parties.

This SOW is valid through **February 28, 2023** and shall become binding upon execution by You and acceptance by Oracle.

CUSTOMER

**Authorized
Signature:**

DocuSigned by:

9762D0277286466...

Print Full Name:

Tania waden

Job Title:

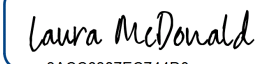
COO

Signature Date:

January 5, 2023 | 14:18 PST

ORACLE AMERICA, INC.

**Authorized
Signature:**

DocuSigned by:

3ACC6387EC744D0

Print Full Name:

Laura McDonald

Job Title:

Sr. Business Analyst

Signature Date:

January 5, 2023 | 14:31 PST

This SOW may be signed electronically, in which case signatures may appear above or on the last page.